

		date, the Court finds that the imposition of monetary sanctions is warranted. Thus, Defendants' request for monetary sanctions against Plaintiff is GRANTED in the amount of \$1,500.00. Sanctions to be paid within 30 days. <i>Defendants to give notice.</i>
102	Douglas vs. Gordon Lane Healthcare, LLC, 23-01330147	Defendant, Sun Mar Management Services ("Sun Mar"), moves for an order staying and quashing the notice of deposition of Mike Oxford served by Plaintiffs Ellen Douglas, individual and as successor-in-interest to Bruce Douglas, Megan Douglas, and Cameron Douglas (collectively, "Plaintiffs"), as well as moves for a protective order as to the deposition of Mike Oxford. Defendant Sun Mar, contends that Mr. Oxford is the Chief Operating Officer of Defendant Sun Mar and is tantamount to an "apex" employee who has no personal, unique, or superior knowledge of any of the facts surrounding this lawsuit. Sun Mar asserts that the notice of deposition for Mr. Oxford should be stayed and quashed as Plaintiffs have prematurely noticed his deposition, and that the Court should issue a protective prevent the deposition of Mr. Oxford. Sun Mar asserts that good cause exists for a protective order as Plaintiffs improperly seek to take the deposition of Mr. Oxford without first seeking discovery regarding the knowledge and information possessed by Mr. Oxford through less intrusive discovery methods, and without satisfying the principles set forth in <i>Liberty Mutual Insurance Company v. Superior Court</i> (1992) 10 Cal.App.4th 1282, and that the depositions of all relevant caregivers and lower level employees of Defendant(s) must take place before Plaintiffs can be allowed to leap to the apex of the Defendant company to reach Mr. Oxford. Sun Mar further asserts that Plaintiffs have not and cannot make a showing that Mr. Oxford has any personal, unique, or superior knowledge of any of the facts surrounding this lawsuit. Plaintiffs contend that the gravamen of Plaintiffs' neglect claims concern operational decisions that were made by managing agents of Defendant Sun Mar during Bruce Douglas' admission to Defendants' facility;

that the assertion that Mr. Oxford is an "apex" employee is conclusory; that the circumstances at issue differ from the circumstances in Liberty Mutual; and that on April 8, 2026, Plaintiffs deposed John Bowen in his individual capacity and as person most knowledgeable for Gordon Lane Healthcare Center, who testified that Mr. Oxford was the Chief Operating Officer at Sun Mar at the time of Bruce Douglas' admission to Defendants' facility, and that there was a management agreement in effect between Sun Mar and Gordon Lane Healthcare Center at the time, as well as that Plaintiffs have served interrogatories and written discovery regarding matters pertaining to ownership and control of Defendants' facility which Defendants have evaded answering in a straightforward manner. Plaintiffs assert that Defendant has not met its initial burden to establish good cause for a protective order.

Meet and Confer

Code of Civil Procedure section 2025.410(c) provides that a motion for an order staying the taking of the deposition and quashing the deposition notice shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. Similarly, a motion for protective order under Code of Civil Procedure section 2025.420 "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc. § 2025.420(a).) Code of Civil Procedure section 2016.040 provides that "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

Sun Mar's counsel provides that on March 19, 2026, Plaintiffs' counsel notified defense counsel by email that Plaintiffs would be serving a Notice of Deposition for Mike Oxford; that defense counsel responded via email stating the reasons why Mr. Oxford's deposition was inappropriate, their intention to file a motion to quash, and an invitation to further meet and confer; and that Plaintiffs' counsel responded by email inviting further meet and confer following the filing of the instant motion and served the Notice of

		Deposition of Mike Oxford on March 19, 2026. (Declaration of Lydsay E. Dublin, ¶¶ 8-10, Exs. B-D.) Neither the moving nor the opposing papers show any additional or further meet and confer despite both parties' invitation to do so. The email correspondence does not reflect adequate, reasonable, and good faith attempts to meet and confer to informally resolve the issue presented by the motion as to the deposition of Mr. Oxford. Nevertheless, in this instance, the Court will turn to the merits of the motion. The Court warns the parties that any failure to adequately meet and confer with regards discovery in the future will result in either denial of the motion or a continuance for the parties to comply with their statutory obligations. <i>Merits</i> Here, Sun Mar's arguments to quash the deposition notice and to issue an order prohibiting the deposition of Mr. Oxford at this time is premised on the assertion that Mr. Oxford is an "apex" employee. To support that Mr. Oxford is an "apex" employee, Sun Mar's counsel states that Mr. Oxford is the Chief Operating Officer of Sun Mar. (Declaration of Lyndsay E. Dublon, ¶ 2.) Sun Mar argues that Plaintiffs have not complied with the principles set forth in <i>Liberty Mutual</i> in seeking the deposition of Mr. Oxford. The showing in <i>Liberty Mutual</i> to establish that the individual was an "apex" employee is not present here. In <i>Liberty Mutual</i>, the Court of Appeal explained that "[t]he head of a large national corporation will generally not have knowledge of a specific incident or case handled several levels down the corporate pyramid," and that "an insurance company's chief executive will seldom, if at all, be involved in the day-to-day processing of claims." (<i>Liberty Mutual, supra</i>, 10 Cal.App.4th at p. 1287.) Additionally, in <i>Liberty Mutual</i>, the corporate executive at issue declared a lack of knowledge or involvement, and "his administrative assistant establish[ed] that individual case material or correspondence is habitually rerouted away from Countryman [the president and chief
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	executive officer of Liberty Mutual Insurance Company] and to a lower level official.” (<i>Ibid.</i>) More specifically, the plaintiff named as defendants, Liberty Mutual Insurance Company and its president and chief executive officer, Gary Countryman. (<i>Id.</i> at p. 1285.) The deposition of Countryman was noticed and Countryman moved for a protective order to prohibit his deposition on the ground that the plaintiff had no legitimate need to depose him and was doing so only for the purposes of annoyance and harassment. (<i>Ibid.</i>) To support the motion, Countryman submitted a declaration stating that he was not involved in the handling, supervision or management of any claims for Liberty Mutual, and that he had no knowledge of the plaintiff’s case or any facts alleged in the plaintiff’s complaint. (<i>ibid.</i>) In addition, Countryman’s administrative assistant submitted a declaration stating that she was responsible for screening all of Countryman’s correspondence, and that she had no recollection of plaintiff’s matter or any legal papers or correspondence relating thereto, and that any such materials relating to plaintiff’s claim and addressed to Countryman would have been shunted to a lower level employee. (<i>Id.</i> at pp. 1285-1286.) In contrast, the instant motion to quash and protective order is supported only by a declaration of counsel who states in conclusory fashion that Mr. Oxford is the Chief Operating Officer of Sun Mar. Mr. Oxford’s title, without more facts regarding the levels of corporate management, Mr. Oxford’s lack of knowledge or involvement of the instant lawsuit or facts upon which this lawsuit is based, does not sufficiently establish that Mr. Oxford is an “official at the highest level of corporate management” for Sun Mar to trigger the principles set forth in Liberty Mutual for the deposition of an “apex” individual. There is insufficient information presented to the Court to establish that Mr. Oxford is an “apex” individual of Sun Mar. Consequently, Sun Mar fails to show that the deposition notice of Mr. Oxford should be quashed and fails to show good cause for a protective order prohibiting Mr. Oxford’s deposition.
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		Based on the foregoing, the Court DENIES Sun Mar's motion to quash the deposition of Mr. Oxford, and denies the requested protective order. <i>Plaintiffs to give notice.</i>
103	Berger vs. Mission Viejo Animal Services, 25-01502673	<i>Off-calendar.</i>
104	Hoshour vs. Montgomery, 24-01392447	Plaintiffs David Guy Hoshour and Wensun Chen seek an order compelling Defendant Annelise Montgomery to provide further responses to Requests for Admission, Set One, served on Defendant on October 11, 2025. Initially, this Motion was filed January 8, 2026 by Plaintiffs David Hoshour and Wensun Chen, who are in pro per. (ROA 65.) Notably, in support of the Motion is a declaration by "Mark J. Kizer" who is "assisting Plaintiffs DAVID GUY HOSHOUR and WENSUN CHEN in this matter." (Declaration of Kizer para.1.) While Mr. Kizer indicates he has "personal knowledge of the facts set forth herein and could competently testify thereto", he fails to indicate how, or whether he is an attorney. Where responses have been served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. [CCP § 2033.290.] Importantly, no further response can be ordered to an RFA that has been unqualifiedly denied, even if the facts involved are unquestionably true. "[A] court [cannot] force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions" by denying them. [<i>Holguin v. Sup.Ct. (Hoage)</i> (1972) 22 Cal.App.3d 812, 820.] Here, on October 11, 2025 Plaintiffs served RFAs, Set 1. (Decl. Kizer¶2.) Defendant did not serve responses until December 16, 2025